

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS MARCH TERM A.D. 2025

BEFORE HER HONOR: SIE-A-NYENE G. YUOH.....CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA ASSOCIATE JUSTICE
BEFORE HIS HONOR: YAMIE QUIQUI GBEISAY.....ASSOCIATE JUSTICE
BEFORE HER HONOR: CEANEH D. CLINTON JOHNSON.....ASSOCIATE JUSTICE

Chuchu Selma of the City of Monrovia,)
 Republic of Liberia.....Informant)
) Bill of Information
 Versus)
)
 Ms. Kebeh Gorpudolo of the City of Monrovia,)
 Republic of Liberia.....Respondent)
)
 GROWING OUT OF THE CASE:)
)
 Ms. Kebeh Gorpudolo of the City of Monrovia,)
 Republic of Liberia.....Petitioner)
)
 Versus) Appeal
 Chuchu Selma of the City of Monrovia,)
 Republic of Liberia.....Respondent)
)
)
GROWING OUT OF THE CASE:)
)
 Chuchu Selma of the City of Monrovia,)
 Republic of Liberia.....Petitioner)
)
 Versus) Petition for Custody of Children
)
 Ms. Kebeh Gorpudolo of the City of Monrovia,)
 Republic of Liberia.....Respondent)

Heard: March 19, 2025

Decided: May 28, 2025

MADAM CHIEF JUSTICE YUOH DELIVERED THE OPINION OF THE COURT

When this bill of information was called for hearing, the Court observed the absence of the counsel representing the informant and upon inquiry from the Clerk, the Court was informed that the counsel representing the informant was duly served the notice of assignment and yet failed to appear for the hearing, and without leave of absence from the Court. Hence, the Court gave notice to the parties that it will invoke the relevant provisions of the Revised Rules of the Supreme Court to enter upon the records and render a decision in the case. Hence, this Opinion.

Rule IV, Part 12 of the Revised Rules of the Supreme Court (1999) defines the office of bill of information as follows:

- a) "...A bill of information will lie to prevent a judge or any judicial officer who attempts to execute the mandate of the Supreme Court in an improper manner
- b) A bill of information will also lie to prevent whomsoever from interfering with the Judgment and/or Mandate of the Supreme Court
- c) Any Counsellor who files a bill of information before this Court assigning reasons therefor other than the reasons expressly prescribed by these Rules shall be penalized by the imposition of a fine, suspension or disbarment..."

In numerous cases involving a bill of information, and in giving interpretation to the above quoted provisions of its Rules, the Supreme Court has opined that the matter forming the basis of the information must have been pending before the Court or decided by it; there must be an act tending to usurp the province of the Court; there must exist some irregularities or obstruction in the execution of the Supreme Court's Mandate. *Ahmadu v. Sirleaf, III and Bartu Dorley v. Yessim El-Bim et. al.*, Supreme Court Opinion, March Term 2013; *J.D. Wesley et. al. v. His Honor Yamie Quiqui Gbeisay, Sr.et. al*, Supreme Court Opinion, March Term 2023.

Additionally, the Supreme Court has granted a bill of information in instances where a Justice in Chambers declines to issue the alternative writ but proceeds to give further instructions to the lower court, or where the mandate or decision of the Justice in Chambers deprives the Supreme Court of its authority as the final arbiter of all cases in the law. *Bassan H. Jawalry, Executor of the Testate Estate of Milad R. Hage v. His Honor Kabineh M. Ja'neh et. al*, Supreme Court Opinion, March Term 2012; *Intestate Estate of Sarah Sirleaf v. El-Bim et. al*, Supreme Court Opinion, March Term A.D. 2013; *Varney Lartey and Adama Shannon v. His Honor James E. Jones*, Supreme Court Opinion, March Term A. D. 2020.

The present bill of information stems from an appeal in action of divorce filed before the Sixth Judicial Circuit, Civil Law Court, Montserrado County, by Ms. Kebeh Gorpudulo, the respondent herein, against the present informant. At the conclusion of the hearing on the said action of divorce, the trial court ruled in favor of the respondent and issued a bill of divorcement annulling the marriage between

the informant and respondent, Mr. Chuchu Selma and Ms. Kebeh Gorpudulo Selma, respectively. Thereafter, the informant filed a petition for custody of their three (3) minor children: Maia Selma, Albertha Selma and Angel Selma. The trial court heard the petition and on March 2, 2022 granted the informant, permanent custodial rights over the children, but given that the respondent had noted exceptions to the final ruling of the trial court on the petition for custody and announced an appeal therefrom, the trial court ordered the informant to continue paying to the respondent the amount of United States Dollars Seven Hundred Fifty (US\$750.00) as monthly support for the welfare and upkeep of the minor children pending the final determination of the appeal by the Supreme Court.

The records show that the respondent, now appellant, completed all of the mandatory and necessary steps under the appeal statute, thus perfecting her appeal to the Supreme Court. Hence, the Supreme Court as per the dictates of the law assumed jurisdiction over the case and the custody appeal is pending undetermined before this Court.

On June 28, 2024, the informant filed a ten-count bill of information before this Court, alleging that despite his compliance with the lower court's order to make monthly payments of Seven Hundred Fifty United States Dollars (US\$750.00) for the welfare and upkeep of the three (3) minor children of the marriage, the respondent has denied him visitation rights by traveling out of the bailiwick of Liberia, taking along the three (3) minor children to an unknown destination without any information to him or the trial court; that the respondent's action to remove their children from Liberia, without notice actual or constructive caused him serious emotional harm; that while trying to discover the whereabouts of his three (3) minor children, he received a surprising text message from the respondent indicating therein that she and his three (3) children are now residing in the Republic of Ghana; that he (informant) should collaborate with her lawyer to continue his monthly support payments and payment on their outstanding tuition through wire transfer; and that the action by the respondent deprived him of the visitation rights granted him by the lower court pending the appeal.

We note from the records, that the informant had filed on January 17, 2024 a bill of information before the trial court containing the same allegations as the present bill of information; that the trial judge having heard that bill of information ruled on

February 29, 2024, ordering the respondent to return to Liberia with their three(3) minor children within two (2) weeks as of the rendition of the trial court's ruling; that as of the informant filing of this second bill of information before this High Court on June 28, 2024, the respondent had not complied with the ruling of the trial court to return with the three (3) children.

On October 23, 2024, the respondent filed a ten-count returns to the bill of information, recounting the dissolution of the marriage between the informant and her by the issuance of a bill of divorcement in their favor by the Sixth Judicial Circuit, Civil Law Court, Montserrado County on January 17, 2020; that subsequently, the informant filed a petition for custody of their three (3) minor children which was granted by the Sixth Judicial Circuit, Civil Law Court, Montserrado County; that she noted exceptions to the ruling and thereafter completed the appeal process, and which appeal is still pending undetermined before the Supreme Court; that the informant has consistently defaulted in payment of the monthly support ordered by the trial judge for the welfare and upkeep of their three (3) minor children contrary to his assertion that he is current on payment; and that the instant bill of information is a fit subject of dismissal because it does not allege any violation or improper enforcement by any party of a mandate emanating from the Supreme Court to the Sixth Judicial Circuit, Civil Law Court, Montserrado County; and that the filing of the present bill of information is to evade the monthly support payment ordered by the lower court for the welfare and upkeep of their three (3) minor children.

In view of all that this Court has narrated herein, the issue dispositive of this bill of information is whether or not a bill of information will lie under the facts and circumstances of this case?

As earlier indicated herein, where the matter forming the basis of the information is pending before this Court or has been decided by it; there must be an act tending to usurp the province of the Court; there must exist some irregularities or obstruction in the execution of the Supreme Court's Mandate. *Ahmadu v. Sirleaf, III and Bartu Dorley v. Yessim El-Bim et. al.*, Supreme Court Opinion, March Term 2013; *J.D. Wesley et. al. v. His Honor Yamie Quiqui Gbeisay, Sr.et. al*, Supreme Court Opinion, March Term 2023.

In the instant case, we note from the records that by virtue of the perfection of the respondent's appeal from the ruling of the trial judge in the custody proceeding, the appeal on that matter is currently pending undetermined before this Court, but not an appeal on visitation rights. The latter issue was disposed of by the trial court in its ruling of February 29, 2024, with neither the informant or the respondent appealing therefrom. The Supreme Court has opined that "a party cannot enjoy the benefit of any form of appellate review by remedial process or before the Full Bench of the Supreme Court and is bound by the judgment of the lower court where it has failed to note exceptions to the ruling of the trial court and announced an appeal therefrom which would be an indication of the appellant's disagreement with the ruling." *LPRC V. Natt*, 42 LLR 54, 56 (2004). Hence, in the instant case, the matter forming the basis of the bill of information being a custody matter and not visitation rights, the two being distinct, bill of information will not lie.

WHEREFORE AND IN VIEW OF THE FOREGOING, the bill of information is denied. The informant is however ordered to continue payment of the children's support in the amount of Seven Hundred Fifty (US\$750.00) United States Dollars, pursuant to the March 28, 2024, Mandate of this Court, pending the final determination of the custody appeal. The Clerk of this Court is ordered to notify the parties, by and thru their respective legal counsels of this Court's decision. Cost to abide final determination. AND IT IS HEREBY SO ORDERED.

When this case was called for hearing, Counsellor of the International Law Group, LLC appeared for the appellant. Counsellor Mark M. M. Marvey of the Law Chambers appeared for the respondent.

Bill of Information denied.